

**CHAPTER 33.**

An Act for the Prevention of Cruelty to Wild Animals  
in Captivity. [6th August 1900.]

**B**E it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Definition of  
"animal."  
12 & 13 Vict.  
c. 92.  
17 & 18 Vict.  
c. 39.

Cruelty to  
captive  
animals.

1. The word "animal" in this Act means any bird, beast, fish, or reptile which is not included in the Cruelty to Animals Acts, 1849 and 1854.

2. Any person shall be guilty of an offence who, whilst an animal is in captivity or close confinement, or is maimed, pinioned, or subjected to any appliance or contrivance for the purpose of hindering or preventing its escape from such captivity or confinement, shall, by wantonly or unreasonably doing or omitting any act,—

cause or permit to be caused any unnecessary suffering to such animal; or

cruelly abuse, infuriate, tease, or terrify it, or permit it to be so treated.

Penalty.

3. Any person committing an offence may be proceeded against under the Summary Jurisdiction Acts, and on conviction shall for every such offence be liable to imprisonment with or without hard labour for not exceeding three months, or a fine not exceeding five pounds, and, in default of payment, to imprisonment with or without hard labour.

Limit of  
Act.

39 & 40 Vict.  
c. 77.

4. This Act shall not apply to any act done or any omission in the course of destroying or preparing any animal for destruction as food for mankind nor to any act permitted by the Cruelty to Animals Act, 1876, nor to the hunting or coursing of any animal which has not been liberated in a mutilated or injured state in order to facilitate its capture or destruction.

5. This Act shall not extend to Scotland.

Short title.

6. This Act may be cited for all purposes as the Wild Animals in Captivity Protection Act, 1900.

**CHAPTER 34.**

An Act to amend the Ancient Monuments Protection  
Act, 1882. [6th August 1900.]

**B**E it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: